

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Friday, August 14, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, August 14, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-00532	Paulina Cardenas, et al. vs Select Harvest USA, LLC
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Motion for Preliminary Approval of Class Action and PAGA Settlement

The unopposed motion for preliminary approval of class action and PAGA settlement is DENIED WITHOUT PREJUDICE.

The Court has reviewed the motion and accompanying declarations and finds that the majority of the settlement terms are fair and reasonable under the particular circumstances of this case, and conditional certification of the class is appropriate.

However, there are three issues that need to be addressed prior to approval.

First, Plaintiffs request up to \$15,000 for the administration fee. This amount is not supported by way of declaration or exhibits. There is no declaration or other evidence of the cost of administration from Apex Class Action, LLC supporting the requested amount.

Second, there are no declarations from the representative plaintiffs that support the requested enhancement payments. Counsel's declaration alone as to the selected plaintiffs' time and efforts is insufficient.

Third, the proposed Notice of Settlement is deficient. Although the proposed notice mentions the Administrator's website, it does not have a section reserved for the website to be inserted. For example, the last page of the proposed notice includes a line for the Administrator's email address, mailing address, and telephone number, but there is no line reserved for the Administrator's website.

Accordingly, the court denies the motion for preliminary approval of class action and PAGA settlement, without prejudice.

23CV-03479 Diana Contreras Rodriguez vs.LE HOMES, et al

Motion to Be Relieved As Counsel

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

Counsel failed to use mandatory form MC-052 for the attorney declaration. (See Rules of Court, rule 3.1362.)

Counsel is able to refile the motion using the correct mandatory forms.

23CV-04368 Tony Borba, et al. vs County of Merced, et al.

Objection to Report of Discovery Dispute Conference Re Commencement of Depositions by Defendants

Appearance required.

25CV-00872 Virginia Allen vs Richard Vargas, Junior

Motion for Interlocutory Judgment for Partition by Sale

The motion for interlocutory judgment for partition by sale is DENIED WITHOUT PREJUDICE.

The Partition of Real Property Act applies to all partition actions where title to the property is held in tenancy in common, where no agreement exists binding all cotenants which governs the form of partition of the property, and the action was filed after January 1, 2023. (Code Civ. Proc. § 874.311.)

The court finds that sufficient evidence exists to make the threshold finding that title to the property at 9304 North Winton Way, Winton, California (the "Property") is held in tenancy in common by Plaintiff and Defendant. As a prima facie showing of the applicability of the PRPA has been made, subject to the merits of the case and defenses raised by both parties, this court must first comply with the terms of the PRPA before reaching the merits of the partition action.

Accordingly, the parties are ordered as follows:

1. Meet and confer regarding the value of the Property or a proposed method of valuation. If a stipulation to value or method of valuation can be reached, it is to be filed with the Court *no later than* September 11, 2026. The Court must adopt any such stipulation or agreement. (Code Civ. Proc. § 874.316, subd. (b).)

2. If no agreement regarding the Property's value or the appropriate method of valuation can be reached, the parties are to meet and confer and select a disinterested real estate appraiser licensed in the State of California to conduct the appraisal, to be filed with the court *no later than* September 18, 2026.

3. If no agreement regarding an appointed real estate appraiser can be reached, each party is ordered to file with the court and serve on opposing counsel, *no later than* September 18, 2026, the names of three (3) real estate appraisers licensed in the State of California, along with their rates in the event of appointment. Each party must then also submit their proposed valuation of the property, if any, accompanied by an offer of proof of the basis of this proposal, which may be in the form of declarations.

4. On September 24, 2026, at 8:15 a.m. in Courtroom 8, the Court will appoint a real estate appraiser licensed in the State of California to determine the fair market value of the property, pursuant to Code of Civil Procedure section 874.316, subd. (d), unless the Court finds the cost of appraisal outweighs its value to the Court based on the proposed values and offers of proof submitted by the parties. (Code Civ. Proc. § 874.316, subd. (c).)

5. If an appraiser is appointed, the Court will follow the provisions of Code of Civil Procedure section 874.316, subdivisions (e) through (g), and an additional evidentiary hearing will be scheduled at least 30 days after notice of the appraisal is sent to all parties.

6. As both parties have requested partition, once the fair market value of the property has been determined, either by way of agreement or following an evidentiary hearing, the parties may then file a motion for interlocutory judgment.

26CV-03503 Raquel Comparam vs Priscilla Gonzalez

Order to Show Cause re: Restraining Order

Appearance required.

21CV-03369 Veronica Padron vs Bhavesh Patel, et. al.

Review of Case Status

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Application Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Friday, August 14, 2026
1:15 p.m.

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Case No.	Title / Description
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25CV-06626	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Ex Parte Application for Entry of Judgment

Plaintiff's ex parte application for entry of stipulated judgment is GRANTED. It is undisputed that Defendants defaulted under the payment terms of the settlement agreement between the parties. The Court will sign the proposed order and proposed judgment submitted by Plaintiff.

The court hearing scheduled for April 1, 2027, is vacated.

25CV-02752	Portfolio Recovery Associates, LLC vs. Juan Villegas
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Ex Parte Application for Order Extending Time to File Responsive Pleading

Appearance required.